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IN THE FAMILY DIVISION
OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

IN THE MATTER OF:

EVAKAY BALDES, AND ALEXIS CLARK, MINOR CHILDREN.	CASE NO. JV24-00104 JV24-00105 DEPT. NO. JM1
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COURT REPORT FOR THE DISPOSITIONAL HEARING

HEARING SCHEDULED FOR: March 20, 2024, at 2:00 p.m.
*Date subject to change based on Court Operations.

PLACE OF HEARING: Second Judicial District Court of the State of Nevada

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1 CONCERNING: EVAKAY BALDES
2 AGE: Fourteen years, five months
3 DATE OF BIRTH: October 19, 2009
4 DATE OF REMOVAL: January 23, 2024
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6 CONCERNING: ALEXIS CLARK
7 AGE: Ten years, zero months
8 DATE OF BIRTH: February 24, 2014
9 DATE OF REMOVAL: January 23, 2024
10
11 FATHER TO EVAKAY: JUSTIN BALDES
12 Date of Birth: October 3, 1990
13 Address: 39 S 14th St.
Worland, WY 82401
14 FATHER TO ALEXIS: DONOVAN CLARK
15 Date of Birth: March 20, 1985
16 Address: 6550 Pyramid Way #37
Sparks, NV 89436
17 MOTHER: MEGAN MCCAFFERTY
18 Date of Birth: August 25, 1991
19 Address: 6550 Pyramid Way #37
Sparks, NV 89436
20 **I. INDIAN CHILD WELFARE ACT (ICWA)**
21 This case DOES NOT involve the protection of an Indian child. This determination was
22 made by the statement of MEGAN MCCAFFERTY, MOTHER and DONOVAN CLARK,
23 FATHER TO ALEXIS on JANUARY 23, 2024; and JUSTIN BALDES, FATHER TO
EVAKAY, on JANUARY 29, 2024.
24 **II. PLACEMENT OF THE CHILD(REN)**
25 EVAKAY is currently placed at DAVIDSON and CRIST, FAMILY FOSTER.
26 ALEXIS is currently placed at DAVIDSON and CRIST, FAMILY FOSTER.
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1 **III. PLACEMENT OF THE CHILD(REN) IN RELATION TO SIBLINGS**

2 N/A

3 **IV. CIRCUMSTANCES WHICH LEAD TO THE REMOVAL AND**
4 **HOUSEHOLD COMPOSITION**

5 On November 2, 2023, WCHSA received a P3 report alleging neglect: physical risk as to
6 Evakay Baldes (14) and Alexis Clark (9) by their mother, Megan McCafferty and Alexis'
7 father, Donovan Clark. The report alleged domestic violence between Ms. McCafferty and
8 Mr. Clark and that Mr. Clark was actively using methamphetamines and Alexis had found a
9 small baggie containing methamphetamines.

10 The agency made contact with the family at the home. At that time, Alexis reported she had
11 found meth once in a pouch that belonged to her dad a few weeks prior. She did not want to
12 discuss it any further. Both children reported ongoing yelling and verbal fighting between
13 their parents, mostly about not cleaning and Mr. Clark's drug use. Ms. McCafferty denied
14 any domestic violence between her and Mr. Clark and stated that they were trying to
15 separate. She reported that Alexis found meth in the home six to seven months prior and she
16 had found it herself about three months prior. She stated that she confronted Mr. Clark, and
17 he flushed it down the toilet both times. She indicated that she believed he was using drugs
18 but could not prove it as he had been behaving erratically. Mr. Clark denied to drug test for
19 the agency at that time. The agency offered to transport Ms. McCafferty and the children to a
20 motel, which she declined. She did initially accept domestic violence advocate services but
21 declined when they contacted her. Mr. Clark denied any physical violence in the home,
22 stating Ms. McCafferty would lie to get him in trouble. He denied using any drugs and
23 reported his last relapse was six months prior, but it was brief. He was heavily fixated on
24 previous agency involvement and that Ms. McCafferty must have been the reporting party for
25 this report. He admitted that his relationship with Ms. McCafferty is toxic and that they fight
26 a lot.

17 The home itself at the time was extremely messy, piles of clothes throughout, small debris on
18 the floor such as toys, crumbs, food items, trash. There were dirty dishes throughout the
19 living room and kitchen with several pans stacked up with old food crusted on them. There
20 was also a strong stale marijuana smell. The agency returned to the home the following day
21 and it had been remedied.

22 A few days later, Ms. McCafferty reported Mr. Clark had moved out as he admitted to her
23 that he had been using meth and needed to go to rehab. She said they were both scared of
24 having the children removed and of CPS involvement. Over the course of the investigation,
25 each time Ms. McCafferty was contacted, she maintained that Mr. Clark was out of the
26 home. WCHSA was not able to reach Mr. Clark during this time despite several attempts.

23 On January 16, 2024, WCHSA received a new report that Mr. Clark was in the home, that he
24 had never left and that the parents had lied to the agency so their case would close; however
25 it was still open.

25 Alexis was interviewed at school. Alexis was immediately emotional and started to cry,
26 saying she is scared CPS will take her; but Ms. Mullins (counselor) told her to be brave and
27 so she has to. She said that her parents told her that if CPS came and she talked to them she
28 would be taken away. She expressed that Mr. Clark specifically told her not to talk about him

1 and that Ms. McCafferty and Mr. Clark lied about Mr. Clark moving out because they
2 wanted their CPS case closed and that the fighting between her parents is really bad, that they
3 fight about everything from cleaning the home, to the kids to money. She denied that they
4 fight with their hands and said that it is constant verbal fighting. Alexis mentioned that she
5 gets a stomachache when things are on her mind, and she's been thinking a lot about how her
6 parents are constantly fighting and they're in a vicious cycle where they fight and then Mr.
7 Clark is nice to Ms. McCafferty for four days and buys her gifts and then they fight really
8 bad again. She said they fight a lot about how messy her mom is. She also said that Ms.
9 McCafferty fights about her dad doing drugs. When asked if her dad uses drugs, Alexis said
10 yes quietly, and nodded her head. She said when he doesn't use drugs, he is way happier, but
11 right now he is "madder". Asked Alexis how she knows that her dad uses drugs and she said
12 that her mom talks to her about it all the time and her parents fight about it. She said she also
13 knows because she found it. She described the most recent time being a couple of days ago in
14 Mr. Clark's bedroom, on his dresser. She said he was digging around in his closet for
15 something and didn't see her walk in and it was on the dresser. The first time was
16 approximately three months ago. She found it in the bathroom on the floor and her mom
17 flushed it down the toilet and her parents fought about it. Then approximately two months
18 ago, she found it in the bathroom in a yellow skull jar that belonged to her dad. When she
19 saw it, she asked her dad and he said that it wasn't his. Then later she told her mom about it
20 and her mom flushed it down the toilet again. She also said that during Christmas break her
21 mom found "a pipe thing for meth." She described meth as being a white crystal powder in a
22 tiny clear baggie. She said that the second time she found meth, which was in the yellow
23 skull jar in the bathroom, she heard her dad snorting it up his nose, the same day. He was in
24 the bathroom when he did that. She expressed that this morning she told her mom about
25 seeing the meth on her dad's dresser a couple of days ago and doesn't know what her mom is
26 going to do about it. She said that the other two times her mom flushes it immediately
because meth is bad to be around kids and her mom heard a story where a kid died from it.
Alexis said she has asked her dad to stop using drugs, but he won't. Alexis expressed that her
mom talks to her about everything, about the fighting with her dad, his drug use, and how she
wants to get her own apartment and leave him.

Eva was also interviewed at school; she was visibly nervous and fidgeting in her chair. She
would only answer questions with minimal information. Asked Eva how things have been
going and she said good it's basically just her parents yelling at each other over old stuff like
break ups and when her dad took Alexis once. She said that her dad is paranoid about her
mom leaving him, so they fight about that a lot. She denied that their fighting gets physical
and said that her and her sister usually stay in their bedroom. When asked if her dad moved
out and came back or if he has remained living there the entire time, she hesitated and said
Mr. Clark has been at the house but is not living there. She said her dad is using drugs but it's
"not serious" and said that her mom has found stuff that proves he is using drugs, but she
doesn't know what exactly. She denied that she has ever found drugs. She said she thinks her
mom is paranoid because she had drug issues with her exes. She said her mom recently told
their Nana that she found a container with drugs in it; but Eva doesn't think it had drugs in it.
The information Eva provided was inconsistent as she claimed that her dad normally comes
over at 4 PM when he gets off work, but then he leaves around 5 PM before her mom gets
there. However, at the onset of the interview, she had stated that they are continuing to fight.
When this inconsistency was brought up, she stated that her parents sometimes see each other
when her dad comes over and it's her mom's day off or her mom gets off early. She said that
Mr. Clark will try to say hi to Ms. McCafferty and talk to her about fixing the relationship
but her mom refuses and ignores him. Asked Eva when they are fighting then, and she was

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1 silent for a minute and said sometimes when they see each other for this brief amount of
2 time, they will argue about the old stuff. She said her mom tends to be very dramatic.

3 Ms. McCafferty was located at the family's home which was again in disarray, piles of
4 laundry in the living room, dirty dishes in and around the sink, significant debris throughout
5 the floor, to include garbage, food and cigarette butts. There was an odor of cigarette smoke
6 in the home. Ms. McCafferty maintained that Mr. Clark was not living there and could not
7 recall the last time she had contact with him. She estimated sometime in November before
8 Thanksgiving. Asked her to look at her call log or text thread with him and she looked
9 through her phone for a brief second and then put the phone down and said she doesn't know,
10 it's been too long. Ms. McCafferty claimed that Eva just told her Mr. Clark has been coming
11 by when she's at work so she has the neighbor directly next door (#36) "looking in on them."
12 Asked if they would confirm this, and she hesitated, and said yes. Ms. McCafferty said that
13 she bought cameras to see when Mr. Clark comes and goes. When asked to pull those
14 cameras up so the footage could be viewed, it took her several minutes on her phone as she
15 claims she broke her glasses and can't see very well without them, so she's not sure if she's
16 typing in the right password. She continued to squint at the phone for several minutes and act
17 as if she couldn't see or enter her password and was just trying to get into the application.
18 After waiting for at least five minutes, she turned the phone and the app showed that the
19 device had been deleted so there were no motions listed. When she was asked about this, she
20 said she didn't know how that happened. Asked Ms. McCafferty why Alexis would report
21 that Mr. Clark is back in the home. She said she had no idea. She said Alexis says that she
22 misses her dad. Asked Ms. McCafferty if Alexis has found any meth in the home recently,
23 she denied, stating only the one time when she flushed it and Alexis can't find meth if Mr.
24 Clark isn't living there. Asked why Alexis would report she recently found meth in the home
25 and she said that she doesn't know and that Alexis has not found anything in the home.

14 While Ms. McCafferty was being interviewed, her phone was on the couch in front of her,
15 face up, and it rang. She tried to pick it up quickly, but the worker saw that it was Mr. Clark
16 calling. She tried to pretend that she was shocked he was calling and answered the phone
17 saying where have you been? Mr. Clark was heard yelling back "what the fuck do you mean
18 where have I been? I am at work." Ms. McCafferty began talking over him very loudly,
19 repeating that CPS is in the home. When spoken to, Mr. Clark reported he's been trying to get
20 into a rehab program at the VA but he has to sort it out with his job. He reported he was
21 living with his friend Brian. He provided an address that does not appear to exist. Mr. Clark
22 was behaving extremely erratically on the phone, yelling, struggling to form sentences and
23 speaking very rapidly almost in a manic state. He said the agency said that his kids are at risk
24 so he left the home and he doesn't know why this is happening. He was adamant that he has
25 been staying at Brian's house and visiting with his mom but he left his home on his own and
is still getting railroaded by WCHSA and asked if he needs an attorney. He said he served his
country, and this is how he gets treated and this is "bullshit."

22 At this time, a non-legal PDP was implemented with paternal grandmother, Della Baker. Ms.
23 Baker corroborated that Mr. Clark had been living in the home, and she did not know that the
24 agency believed him to be moved out. He told her he was going to stay with Brian but she
25 doesn't know if he actually did for any period of time. She knows he has been back in the
home since at least prior to winter break. She stated that this is not a safe living environment,
that Mr. Clark has abused drugs his entire life, and Ms. McCafferty continues to enable his
behavior; the two of them constantly fight, and that Ms. McCafferty has told Evakay
specifically to lie for her, so she doesn't get into trouble. She stated Ms. McCafferty is a
pathological liar, who can turn on the waterworks like a faucet, she is lazy and does not

maintain her household or clean at all. Ms. Baker expressed she's been put in this horrible position of wanting to protect her grandkids but not wanting them to be removed.

On January 23, 2024, Ms. Baker was no longer willing to participate in the PDP and a warrant was granted by Judge Dollinger. Evakay and Alexis are currently placed in the resource home of McKenzie Davidson and Sierra Crist.

V. CURRENT IMPENDING DANGERS

Ms. McCafferty has been completely unwilling to have any conversations around her role in the removal of her children, or how to work reunification with them. She is only willing to do whatever the agency explicitly tells her to and has not displayed any ability to recognize the safety concerns, or have meaningful, change-focused conversation. Collaterals describe Ms. McCafferty as "a pathological liar, who can turn tears on like a faucet." Other collaterals report Ms. McCafferty has always wanted to be the center of attention and feel her lying stems from that. Ms. McCafferty is argumentative and hostile during almost every encounter. She has outright lied numerous times throughout the investigation, and this has been observed by several HSA employees. At this time the agency is unwilling to have communication with Ms. McCafferty that is not in writing or with counsel present.

Ms. McCafferty has failed to protect her children from Mr. Clark's drug use or the verbal violence between the two of them and is unable to understand how this presents safety concerns or resulted in the removal of her children. The dynamics of the household are significantly impacting the children, daily. Alexis describes having stomachaches due to the stress and anxiety of her parents fighting and being told to lie about her dad living in the home. She was emotional and began crying when the assessment worker went to speak to her at school, as she had been told by her parents that CPS would take her away if she told anyone what was happening at home. She can describe her parents fighting, staying in her room to try and avoid it and how her dad will keep the family awake all night as he yells, screams, and paces throughout the home. Both children describe the parents' fighting and Mr. Clark's drug use in detail. Eva stated she hopes her parents can either figure out how to communicate or end their relationship. Eva's eyes welled with tears as she described the stress of handling school, homework, her chores, keeping the house clean, her parents fighting and not being allowed to tell anyone her dad was living at home. The condition of the home is not maintained by either parent to ensure the safety of the children and both girls report feeling responsible for the care of the home.

Ms. McCafferty is unable to have appropriate parent/child boundaries in place with her children. Both children report she overshadows with them; Eva specifically said she doesn't want her mom to vent to her. Eva said their issues are not her issues. She said that her mom is as much the problem as her dad, but she doesn't think she is. The children state their parents are in a "vicious cycle", which is Ms. McCafferty's exact language when describing her relationship with Mr. Clark to the agency. When Ms. McCafferty reportedly located a small tin can with what she believed to be methamphetamine residue in it, she texted Ms. Baker that she and Eva had found it. Eva denies that she was involved in it at all but said her mom did bring the can to show it to her and Eva thought it was just a can and Ms. McCafferty was being dramatic.

Ms. McCafferty reports suffering from depression due to past trauma. Collaterals report Ms. McCafferty spent several years at Wyoming Behavioral Institute as a teenager treating

1 depression, PTSD and drug dependence. She has not disclosed this to HSA. Case history also
2 indicates a previous diagnosis of bi-polar disorder which Ms. McCafferty was not properly
managing.

3 There is limited information known around Mr. Clark's drug use aside from the fact that it is
4 occurring, and the children are not only exposed to it, but are actively finding drugs and drug
5 paraphernalia in the home. Mr. Clark reports being put on various medications when he was
6 12 for being "unruly." He said it progressed into street drugs with his drug of choice being
7 methamphetamines. On January 18, 2024, Mr. Clark admitted that he has been "actively
8 using." He described it as a way to keep him going, because he struggles with mental health,
9 bipolar and depression, and he won't sleep for several days at a time. He works really hard,
10 so when he is so exhausted that he can hardly function anymore, he will use to keep himself
11 going. He said his only drug of choice is methamphetamines. He describes it being every few
12 days via smoking. He does not use needles. He admits that Alexis did find meth one time
13 when it fell out of a hole in his pocket in the bathroom but denies that she ever would have
14 found it any other time. Collaterals report it is evident when Mr. Clark is using due to his
15 erratic and manic behaviors. He becomes irate for no reason, is unable to hold a conversation
or sit still.

16 Ms. McCafferty denies ever reporting any violence between her and Mr. Clark. She initially
17 reported to HSA (Nov. 2023) that verbal fighting was happening often between her and Mr.
18 Clark. She stated they were separating and under financial stress. She reported Mr. Clark tells
19 her she cannot do anything right, and she is yelled at about everything. She admitted the
20 children witness these altercations. She denied that Mr. Clark becomes physical with her;
21 however, reported he has punched holes in the wall from being so angry and that he recently
22 punched the washing machine in a rage and broke it. Ms. McCafferty denies saying any of
this at the PC hearing, which she contested. There is additional collateral information that in
late October 2023 Ms. McCafferty reported ongoing verbal fights occurring between her and
Mr. Clark and that she had audio recordings of such.

16 Mr. Clark described his relationship with Ms. McCafferty as being unhealthy as they argue a
17 lot, and she uses the children as pawns, constantly threatening to take them away. She does
18 things like tell the kids that he didn't help her buy any Christmas gifts and they're all from
19 her, even though his money paid all the bills so that she could buy the Christmas gifts. He
20 explained how he has been trying to get away from her for 10 years, but is constantly being
21 drug back in. She threatens to leave with the kids. Mr. Clark admits to ongoing verbal
22 arguing between him and Ms. McCafferty and has acknowledged that it is in the presence of
the children. He denies any physical violence in the relationship.

20 Mr. Baldes has not had contact with or parented Evakay since 2012. He has made no efforts
21 to locate her, build a relationship with her or ensure she is living in a safe environment where
22 all of her needs are being met. Mr Baldes is court ordered to pay child support; however, Ms.
McCafferty reports this has been inconsistent.

23 VI. IN-HOME SAFETY PLANNING

24 These conditions are needed in order for the agency to put safety services in the home so the
25 children can be placed on an In-Home Safety Plan.

25 Please see attached "Conditions For Return"

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1 **VII. STATUS OF VISITATION**

2 Visitation status and schedule since the time of removal between kids/parents, brief statement
3 about child's response and reactions to visitation, frequency and quality of visitation. Include
4 any other relative contact that has been established. Use a bullet for each of the different
visits set up with the children

- Visitation between Mr. Clark, Ms. McCafferty, Evakay and Alexis occurs twice weekly at the Family Engagement Center.
- The visits are unsupervised.
- The visits are described as positive.
- Ms. McCafferty often brings meals, and the family eats together.
- The parents brought gifts to a visit near Alexis' birthday.
- Evakay has a cell phone; therefore, the parents have unlimited access to Evakay and typically Alexis as well.
- Phone calls and video chats are scheduled for Saturdays and Wednesdays.
- Evakay is not currently visiting Mr. Baldes; she does not know him or have an established relationship with him. The agency firmly believes this is something Evakay will need to process in a therapeutic manner prior to arranging contact due to what Ms. McCafferty has alleged against Mr. Baldes to Evakay.
- Alexis' paternal grandmother would like to visit with the children; however, they are not interested in having contact with her currently.

13 **VIII. EVALUATION OF CHILDREN'S NEEDS**

14 **EVAKAY BALDES**

15 **Medical Needs:**

- Evakay has not been seen by a doctor in many years. She has an appt on March 1, 2024, with Dr. Castaneda at Renown (West Moana location).
- Evakay's EPSDT was conducted on January 24, 2024 and the following reported: Evakay is a healthy young woman. She has concern for a tooth problem and occasional abdominal pain when doing core/ab exercises but otherwise states she is healthy. On exam she does have an adult tooth growing near the base of her L upper canine. Neither tooth is tender or sensitive, there are no signs of infection. She needs to follow up with a dentist. She demonstrates moderate to high depression per a mood questionnaire and should be evaluated for therapy. Provider where they are currently established with/last appt/next appt/outstanding need.
- Evakay is established with Pritchett Eye Care but has no outstanding vision needs at this time.

23 **Dental Needs:**

- Evakay is not established with a dentist and has not been seen by one in several years. She will be seen at My Kids Smile on March 14, 2024.

25 **Mental health/behavioral needs:**

- WCHSA Clinician Clarissa Roman was assigned to complete her clinical evaluations.

- See attached CUMHA and CASII. No recommendations were made.
- No PLR is needed currently.

Education:

- Evakay is in 8th grade at Sky Ranch Middle School.
- Evakay has good attendance and performs well academically.
- Evakay has no noted behaviors or issues in school.

IL Services/Needs if 14 years or older: Deemed unnecessary at this time as parents are actively working reunification; will continue to assess while Evakay remains in WCHSA custody.

ALEXIS CLARK

Medical Needs:

- Alexis has not been seen by a doctor in many years. She has an appt on February 22, 2024, with Dr. Castaneda at Renown (West Moana location).
- Alexis' EPSDT was conducted on January 24, 2024 and the following reported: Alexis is a healthy young girl. She had lice when brought into custody and it continues to be treated. She otherwise appears healthy. She demonstrated moderate anxiety and depression per a mood questionnaire and should be evaluated for therapy.

Dental Needs:

- Alexis is not established with a dentist and has not been seen by one in several years. She will be seen at My Kids Smile on March 14, 2024.

Mental health/behavioral needs:

- WCHSA Clinician Vanessa Najarro was assigned to complete her clinical evaluations.
- See attached CUMHA and CASII. No recommendations were made.
- No PLR is needed currently.

Education:

- Alexis is in 4th grade at Sepulveda Elementary School.
- Alexis has good attendance and performs well academically.
- Alexis has no noted behaviors or issues in school.

IL Services/Needs if 14 years or older: N/A

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1 IX. EVALUATION OF PARENTS' NEEDS

2 MEGAN MCCAFFERTY

3 **Relevant case history:**

- 4 • 1/13/16 (Unsubstantiated Investigation): Environmental neglect-the home is
dirty, Domestic violence between Mr. Clark and Ms. McCafferty, lack of
5 supervision, hygiene issues.
6 • 10/2/16 (Unsubstantiated Investigation): Ms. McCafferty is growing
marijuana inside the home, environmental neglect-the home is dirty.

7 **Adult/Parenting characteristics/behaviors that are contributing to the reasons for
removal:**

- 8 • Ms. McCafferty has been completely unwilling to have any conversations
around her role in the removal of her children, or how to work reunification
9 with them. She is only willing to do whatever the agency explicitly tells her to
and has not displayed any ability to recognize the safety concerns, or have
10 meaningful, change-focused conversation.
11 • Ms. McCafferty is argumentative and hostile during almost every encounter.
She has outright lied numerous times throughout the investigation, and this
12 has been observed by several HSA employees.
13 • Ms. McCafferty reports suffering from depression due to past trauma. She
reports that she has a therapist through the online service, BetterHelp;
14 however, has declined to sign a release of information for this to be verified.
Therefore, she was provided with a voucher to American Comprehensive
15 Counseling Services which she did not utilize.
16 • Ms. McCafferty denies ever reporting any violence between her and Mr.
Clark; however, she initially reported to HSA (Nov. 2023) that verbal fighting
17 was happening often between her and Mr. Clark. She stated they were
separating and under financial stress. She reported Mr. Clark tells her she
18 cannot do anything right, and she is yelled at about everything. She admitted
the children witness these altercations. She denied that Mr. Clark becomes
19 physical with her; however, reported he has punched holes in the wall from
being so angry and that he recently punched the washing machine in a rage
20 and broke it.
• Ms. McCafferty has failed to protect her children from Mr. Clark's drug use or
the verbal violence between the two of them and is unable to understand how
21 this presents safety concerns or resulted in the removal of her children.
• Ms. McCafferty threatened the children that CPS would take them away if she
22 told anyone what was happening at home.
• Ms. McCafferty is unable to have appropriate parent/child boundaries in place
with her children. Both children report she overshares with them; Evakay
23 specifically said she doesn't want her mom to vent to her and their issues are
not her issues.
• The condition of the home is not maintained by either parent to ensure the
24 safety of the children and both girls report feeling responsible for the care of
the home.

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Identified parent strengths:

- Ms. McCafferty appears to love her children.
- Ms. McCafferty has income.
- Ms. McCafferty has stable housing, while living with Mr. Clark.
- The girls are bonded and close with their mother and report missing her.
- Ms. McCafferty attends visits which are described as going well.
- Ms. McCafferty has been respectful to the resource parents.

DONOVAN CLARK

MR. CLARK is the presumed father to ALEXIS based on MR. CLARK AND MS. MCCAFFERTY RESIDED TOGETHER FOR SIX MONTHS PRIOR TO AND THROUGHOUT THE PERIOD OF CONCEPTION. MR. CLARK IS LISTED AS FATHER ON THE BIRTH CERTIFICATE.

Relevant case history:

- 1/13/16 (Unsubstantiated Investigation): Environmental neglect-the home is dirty, Domestic violence between Mr. Clark and Ms. McCafferty, lack of supervision, hygiene issues.
- 10/2/16 (Unsubstantiated Investigation): Ms. McCafferty is growing marijuana inside the home, environmental neglect-the home is dirty.

Adult/Parenting characteristics/behaviors that are contributing to the reasons for removal:

- There is limited information known around Mr. Clark's drug use aside from the fact that it is occurring, and the children are not only exposed to it, but are actively finding drugs and drug paraphernalia in the home.
- Mr. Clark reports being put on various medications when he was 12 for being "unruly." He said it progressed into street drugs with his drug of choice being methamphetamines, and he joined the military to get away from it all. This is also why he left NV when he was discharged and moved to Wyoming.
- On January 18, 2024, Mr. Clark admitted that he has been "actively using." He described it as a way to keep him going, because he struggles with mental health, bipolar and depression, and he won't sleep for several days at a time. He works really hard, so when he is so exhausted that he can hardly function anymore, he will use to keep himself going. He said his only drug of choice is methamphetamines. He describes it being every few days via smoking.
- He admits that Alexis did find meth one time when it fell out of a hole in his pocket in the bathroom but denies that she ever would have found it any other time.
- Collaterals report it is evident when Mr. Clark is using due to his erratic and manic behaviors. He becomes irate for no reason, is unable to hold a conversation or sit still.
- Mr. Clark reports having untreated mental health diagnoses of depression and bipolar disorder. He reports that he does not like the way traditional medications make him feel so he always resorts back to methamphetamine use.
- Mr. Clark has wavered in his willingness to work with the agency. Some days he will acknowledge that he has messed up and wants to do whatever he can

to get his girls back but other days he declines to speak to the agency without an attorney present and claims the agency is trying to strip him of his parental rights and are violating the law. Overall, he is minimally cooperative and unable to recognize how his behavior has negatively impacted the safety of his children and aside from enrolling in a program has no recognition around what he needs to do to reunify with them.

- Mr. Clark has asked several times how long he has to be in the program before the girls get to come home, despite numerous conversations had explaining it's not about the enrollment in the program but rather the length of sobriety. Additionally, he continues to ask why the girls cannot go back to Ms. McCafferty if he leaves the homes, despite the agency already trying this route and failing.
- Mr. Clark described his relationship with Ms. McCafferty as being unhealthy as they argue a lot, and she uses the children as pawns, constantly threatening to take them away. She does things like tell the kids that he didn't help her buy any Christmas gifts and they're all from her, even though his money paid all the bills so that she could buy the Christmas gifts. He explained how he has been trying to get away from her for 10 years, but is constantly being drug back in. She threatens to leave with the kids, which she has done before. Mr. Clark admits to ongoing verbal arguing between him and Ms. McCafferty and has acknowledged that it is in the presence of the children.
- Mr. Clark's behaviors are significantly impacting the children, daily.
- The condition of the home is not maintained by either parent to ensure the safety of the children and both girls report feeling responsible for the care of the home.

Identified parent strengths:

- Mr. Clark is described as loving his children very much. He has become emotional on more than one occasion when speaking about them. He describes that Evakay is as much his daughter as Alexis.
- Mr. Clark enrolled himself in the Partial Hospitalization Program at the VA, following removal.
- Mr. Clark reports he will do whatever is necessary to get his kids home.
- Mr. Clark is employed.
- Mr. Clark has stable housing.
- Mr. Clark attends visits which are described as going well.
- Mr. Clark has been respectful to the resource parents.

JUSTIN BALDES

MR. BALDES is the legal and presumed father to EVAKAY based on THERE IS AN ACTIVE CHILD SUPPORT ORDER IN WYOMING ESTABLISHING PATERNITY; MR. BALDES HOLDS HIMSELF OUT AS FATHER AND IS LISTED AS FATHER ON THE BIRTH CERTIFICATE.

Relevant case history:

- No history with WCHSA.
- Mr. Baldes reports one investigation in WY in which his girlfriend's son made allegations of abuse that were unfounded.

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Adult/Parenting characteristics/behaviors that are contributing to the reasons for removal:

- Mr. Baldes has no relationship with Evakay and has not seen her since 2012.
- Mr. Baldes has paid inconsistent child support to Ms. McCafferty, despite being court ordered to do so.
- Mr. Baldes has taken no steps to ensure Evakay is in a safe living environment where all of her needs are being met.

Identified parent strengths:

- There is little to no information known regarding Mr. Baldes' parenting.
- Mr. Baldes has expressed motivation to build a relationship with Evakay.
- Mr. Baldes is the primary caregiver to another of his children, indicating he does have the ability to parent.
- Mr. Baldes is employed.
- Mr. Baldes has stable housing.
- Mr. Baldes has a vast support system.

X. REASONABLE EFFORTS TO MAKE IT POSSIBLE FOR THE SAFE RETURN OF THE CHILD/REN TO THE HOME

All services/efforts provided to the family between the time of removal to the date of the writing of the report.

- DVA services (declined)
- Drug testing for both parents (declined)
- Motel stay for Ms. McCafferty and the children (declined)
- Voucher for counseling for Evakay (did not follow through)
- Voucher to ACCS for psychosocial with DV add-on, and individual counseling (12 sessions)
- Voucher to Kids First Family Services for couples/family counseling (12 sessions)
- Voucher to Kids First Family Services for parenting classes (8 sessions)
- Voucher to ACCS for Effects of Violence workshop for both parents (6 sessions)
- Bus passes to both parents

Refer to Case Plan and Service Agreement attachment for case plan goals.

XI. PLACEMENT PLANNING/RELATIVE RESOURCES/DILIGENT EFFORTS TO LOCATE

Discussion has taken place with the care provider and they are not willing to be a long-term placement option.

Pursuant to Fostering Connections to Success and Increasing Adoptions Act of 2008, known adult relatives have been provided: Notice that the child(ren) have been removed from the custody of their caregivers; explanation of options available to them to participate in case planning and placement of the child(ren); requirements and supports available to relative foster homes and Kinship Care Program; and a request to provide the names of other relatives of the child(ren).

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1 WCHSA has made the following efforts to identify, locate, notify and evaluate relatives:
2 • A non-legal PDP was implemented with paternal grandmother (to Alexis),
3 DELLA BAKER and her husband, BYRON MACCHIETTO, from January
4 16-23, 2024. They were unwilling to be a placement option any longer.

5 **REQUESTED FINDINGS AND RECOMMENDATIONS/ORDERS**

6 Findings

- 7 1. The Court has jurisdiction pursuant to NRS 432B.410 and NRS 125A.
- 8 2. An initial inquiry has been made about whether the Indian Child Welfare Act
9 applies. Based upon information provided by the parents or obtained by the WCHSA, the
10 Indian Child Welfare Act does not apply.
- 11 3. Notification of this hearing was properly served on the parties.
- 12 4. The current physical placement of said child(ren) with DAVIDSON and
13 CRIST is appropriate, least restrictive, and consistent with the best interest and special needs
14 of the child(ren). Further it is in the best interest of the child(ren) to be placed together pursuant
15 to NRS 432B.550.
- 16 5. WCHSA has made reasonable efforts to make it safe for the child(ren) to return
17 home pursuant to NRS 432B.393 as set forth in section "X" of the Report.
- 18 6. The Case Plan for MEGAN MCCAFERTY, DONOVAN CLARK, JUSTIN
19 BALDES, EVAKAY BALDES and ALEXIS CLARK is appropriate.
- 20 7. The permanency plan is reunification.

21 Recommendations/Orders

- 22 1. Legal and physical custody and care with the authority to determine the
23 appropriate placement of EVAKAY BALDES and ALEXIS CLARK remain with the
24 WCHSA, subject to review by the court.
- 25 2. WCHSA may consent to any and all necessary and/or emergency
26 medical/dental treatment for the child(ren) while the child(ren) remain in its custody.

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1 3. MEGAN MCCAFFERTY is ordered to comply with the Case Plan, subject to
2 court review upon request by the parent. The Case Plan will be updated upon receipt of the
3 recommendation from the evaluation.

4 4. DONOVAN CLARK is ordered to comply with the Case Plan, subject to
5 court review upon request by the parent. The Case Plan will be updated upon receipt of the
6 recommendation from the evaluation.

7 5. JUSTIN BALDES is ordered to comply with the Case Plan, subject to court
8 review upon request by the parent.

9 6. MEGAN MCCAFFERTY, DONOVAN CLARK and JUSTIN BALDES shall
10 provide the WCHSA with identifying information, including name, address and phone
11 numbers of any relatives with whom the child(ren) may be placed.

12 7. MEGAN MCCAFFERTY, DONOVAN CLARK and JUSTIN BALDES shall
13 refrain from harmful or offensive conduct to the child(ren), the other parent, the custodian of
14 the child(ren) or any person who has placement, to include discussing the details of this case
15 and any disparaging statement or comments.

16 8. Visitation Plans [if separated] attached hereto be ordered.

17 9. MEGAN MCCAFFERTY, DONOVAN CLARK and JUSTIN BALDES shall
18 each pay child support, pursuant to NRS 432B.560(2), to defray the expenditures for the
19 child(ren) while in foster care.

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10. A Semi-Annual Review Hearing and Permanency Hearing be set.

AFFIRMATION PURSUANT TO NRS 239B.030

The undersigned does hereby affirm that the preceding document does not contain the personal information of any person.

Respectfully Submitted,
/s/ Natasha Mieras
Natasha Mieras
Human Services Case Worker
Human Services Agency

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ATTACHMENTS

1. ICWA statements from each parent
2. Placement directory for each child
 3. Photo of each child
 4. Declaration of mailing
 5. Clinical Documentation
 6. CFRs document from Unity
7. Visitation plans (sibling and/or parent)
 8. CASII